

1.

CASE #	CASE NAME	HEARING NAME
CVME2511805	ANNETTE VS TOYOTA MOTOR SALES	MOTION TO DISMISS AND MOTION TO STRIKE

Tentative Ruling:

Motion to Strike is granted in part, denied in part. Motion to dismiss is denied. A party can bring a motion to strike any irrelevant, false, or improper matters inserted in a pleading. (CCP §436(a).) A motion to strike can also be used to strike any part of a pleading that is not drawn or filed in conformity with the laws of the state, a court rule, or an order of the court. (CCP §436(b).)

Defendant seeks to strike the entire FAC because it was not served within the 20 day time period given by the Court for leave to amend. It is not disputed by the parties that that FAC was filed with the court during this applicable period. "If the complaint is amended, a copy of the amendments shall be filed, or the court may, in its discretion, require the complaint as amended to be filed, and a copy of the amendments or amended complaint must be served upon the defendants affected thereby." (CCP § 471.5(a).)

While Defendant is correct that an amended complaint is required to be served on the defendants, it cites to no authority that supports striking the filed amended pleading if service occurred later than the 20 day time period given for leave to amend. Defendant points to no authority that supports granting this motion without leave is appropriate under these circumstances.

Defendant also seeks to strike some remedies sought in the prayer section of the FAC – declarations regarding the contract and reasonable number of repairs, a request for temporary restraining order or preliminary injunction, and remedies regarding Business & Professions Code § 17200. Plaintiffs do not oppose this portion of the motion to strike. Plaintiffs do not assert a declaratory relief cause of action. As such, motion is granted as to lines 1-3 on page 6 of the FAC regarding declaratory relief. A temporary restraining order or preliminary injunction can be sought without asserting said relief in the complaint. As such, this requested relief is not necessary and the motion is also granted as to line 12 on page 6 of the FAC. Additionally, the Business & Professions Code § 17200 cause of action has been removed. As such, relief under this code section is not proper. As such, the motion is granted as to lines 14-19 on page 6 of the FAC.

Motion to Dismiss: Under CCP § 581(f)(2), "[t]he court may dismiss the complaint as to that defendant when: . . . (2) Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal." (CCP § 581(f)(2).)

The FAC was filed within the applicable period. The issue is service, which has been remedied. Defendants have failed to cite to any authority that granting under CCP § 581(f)(2) would be proper in this instance.

2.

CASE #	CASE NAME	HEARING NAME
CVME2606825	IN RE: NICHOLAS GEORGE	PETITION FOR APPROVAL OF TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

Tentative Ruling: Hearing required